IN THE COURT OF APPEAL OF THE STATE OF CALIFORNIA
IN AND FOR THE SECOND APPELLATE DISTRICT

Case No. B340913

FRANKLIN ARMORY, INC., and CALIFORNIA RIFLE & PISTOL ASSOCIATION, INCORPORATED,
Plaintiffs and Appellants,

v.

CALIFORNIA DEPARTMENT OF JUSTICE, XAVIER BECERRA, in his Official Capacity as Attorney General for the State of California, and DOES 1–10,
Defendants and Respondents.

Superior Court of California, County of Los Angeles, Case No. 20STCP01747, Honorable Daniel S. Murphy, Judge

MOTION TO AUGMENT THE RECORD ON APPEAL WITH REPORTER'S TRANSCRIPT

C.D. Michel – SBN 144258
Jason A. Davis – SBN 224250
Anna M. Barvir – SBN 268728
MICHEL & ASSOCIATES, P.C.
180 East Ocean Blvd., Suite 200
Long Beach, CA 90802
Telephone: (562) 216-4444
Email: abarvir@michellawyers.com
Counsel for Plaintiffs-Appellants

MOTION TO AUGMENT THE RECORD ON APPEAL

Pursuant to rule 8.155(a) of the California Rules of Court, Appellants Franklin Armory, Inc., and California Rifle and Pistol Association, Incorporated, hereby request augmentation of the record on appeal to include the following document:

1. Reporter's Transcript of the case management conference held on February 25, 2021, from 9:33 A.M. to 9:44 AM. The court reporter was Cindy Cameron, CSR No. 10315. A true and correct copy is attached to the Declaration of Anna M. Barvir as Exhibit A.

Appellants respectfully request that this transcript be added to the record on appeal because it is necessary for the Court to fully resolve the issues presented. Appellants did not initially designate the transcript of this routine case management conference because, at the time, it appeared unrelated to the substantive rulings on appeal. It was not until Respondents argued in their brief that Appellants could not challenge errors arising from the trial court's first demurrer order—an issue discussed and decided at the February 25, 2021 case management conference—that the relevance and necessity of the transcript became apparent.

This motion is based on the attached Memorandum of Points & Authorities and the Declaration of Anna M. Barvir attached hereto.

Dated: October 6, 2025

MEMORANDUM OF POINTS AND AUTHORITIES

I. INTRODUCTION

Appellants respectfully request leave to augment the record on appeal to include the reporter's transcript of the February 25, 2021, case management conference. Inclusion of this transcript is necessary to ensure a complete and accurate record for the Court's review.

II. ARGUMENT

A. Legal Standard

Under California Rules of Court, rule 8.155(a)(1)(B), a party may move to augment the record at any time to include "[a] certified transcript—or agreed or settled statement—of oral proceedings not designated under rule 8.130." It is well established that this rule is to be construed liberally so that the appellate court may properly resolve the issues on appeal. (*People v. Brooks* (1980) 26 Cal.3d 471, 484.)

B. Good Cause Exists to Augment the Record

Good cause exists to include the transcript of the February 25, 2021, case management conference. Appellants did not initially designate this transcript because the proceeding appeared to concern routine scheduling matters unrelated to the substantive rulings challenged on appeal. (Barvir Decl., ¶ 4.) However, after Respondents argued in their brief that Appellants cannot challenge errors arising from the trial court's first demurrer order—an issue discussed and decided at the February

2021 conference—it became apparent that the transcript is directly relevant and necessary for this Court's fair consideration of the appeal. (Barvir Decl., ¶ 5.)

Moreover, augmentation will not prejudice any party or delay the proceedings. The transcript is part of the trial court record, and Respondents were present at the hearing and fully aware of the discussion and rulings that took place. Its inclusion merely ensures the Court has an accurate and complete understanding of the procedural and factual history of this appeal. This request is made in good faith, solely to clarify the record for the Court's consideration, and will not affect the current argument schedule. (Barvir Decl., ¶ 6.)

III. CONCLUSION

For these reasons, Appellants request that this Court order that the record on appeal be augmented to include the reporter's transcript of the February 25, 2021, case management conference.

DECLARATION OF ANNA M. BARVIR

I, Anna M. Barvir, declare as follows:

1. I am an attorney licensed to practice law in the state of California. I am a Partner at the law firm Michel & Associates, P.C. ("MAPC"), attorneys of record for Plaintiffs-Appellants in this action. I have personal knowledge of the facts set forth herein and, if called and sworn as a witness, could and would testify competently thereto.

2. This declaration is submitted in support of Appellants' Motion to Augment the Record to include the reporter's transcript of the case management conference held on February 25, 2021. On February 25, 2021, I appeared at a case management conference on behalf of Plaintiffs-Appellants before the Honorable Judge James C. Chalfant. The court reporter, Cindy Cameron, CSR No. 10315, transcribed the matter.

4. When preparing the Notice Designating Record on Appeal, I reviewed the superior court docket and determined that six reporter's transcripts of substantive hearings would be necessary for this Court to review the issues on appeal. The February 25, 2021, case management conference appeared, at that time, to involve routine scheduling matters not relevant to the issues on appeal and was therefore not designated for inclusion.

5. Only after reviewing Respondent's Brief—specifically, their argument that Appellants may not challenge errors arising from the trial court's January 2021 demurrer order—did it become apparent to me that the February 25, 2021, case management conference included discussion and rulings directly relevant to those issues.

6. This request is made in good faith for the reasons set forth above and without intent to delay the appeal.

7. Attached as Exhibit A is a true and correct copy of the Reporter's Transcript of the case management conference of February 25, 2021.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct. Executed on October 6, 2025, at Temescal Valley, California.

MICHEL &
ASSOCIATES, P.C.

s/Anna M. Barvir
Anna M. Barvir
Attorneys for Plaintiffs-Appellants

PROOF OF SERVICE

Case Name: Franklin Armory, Inc., et al. v. California Department of Justice, et al.

Court of Appeal Case No. B340913

Superior Court Case No. 20STCP01747

I, Laura Fera, am employed in the City of Long Beach, Los Angeles County, California. I am over the age eighteen (18) years and am not a party to the within action. My business address is 180 East Ocean Boulevard, Long Beach, California 90802.

On October 6, 2025, I served a copy of the foregoing document described as MOTION TO AUGMENT THE RECORD ON APPEAL WITH REPORTER'S TRANSCRIPT, on the following parties, as follows:

Kenneth G. Lake
Kenneth.Lake@doj.ca.gov
Andrew F. Adams
Andrew.Adams@doj.ca.gov
Office of the Attorney General
300 South Spring Street
Los Angeles, CA 90013
Attorneys for Respondent

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct. Executed on October 6, 2025, at Long Beach, California.

Laura Fera
Declarant